

GAHC010002112020



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Bail Appln. 62/2020

1:MD KUTUB ALI
S/O LATE FARMUD ALI, R/O VILL-JOTIA DANGARA, P.S.-BAIHATA
CHARIALI, DIST-KAMRUP, ASSAM

VERSUS

1:THE STATE OF ASSAM
REPRESENTED BY THE PUBLIC PROSECUTOR, ASSAM

Advocate for the Petitioner : MR. T HUSSAIN

Advocate for the Respondent : PP, ASSAM

BEFORE
HONOURABLE MR. JUSTICE AJIT BORTHAKUR

ORDER

Date : 22-01-2020

Heard Mr. T Hussain, learned counsel appearing for the accused petitioner and Mr. BB Gogoi, learned Additional Public Prosecutor, Assam appearing for the State respondent.

By this 2nd bail application filed under Section 439 Cr.P.C., the accused petitioner, namely, **Md. Kutub Ali** has prayed for granting bail in connection with **Sonapur P.S. Case No. 567 of 2019 (corresponding to GR Case No.17135 of 2019)** under Section 376(2) (f), (i)/506 of the IPC R/w Section 6 of the POCSO Act.

Be it mentioned here that earlier a bail application being Bail Application No.3758 of 2019 was rejected by this Court, vide order, dated 20.12.2019.

Mr. T Hussain, learned counsel appearing for the accused petitioner submits that the accused has completed the statutory period of detention in connection with the above noted case since he was arrested on 23.10.2019 and on the other hand, investigation is yet to be completed.

Mr. BB Gogoi, learned Addl.P.P., Assam submits that in view of completion of the statutory period of detention, the accused petitioner, namely, Md. Kutub Ali be released on bail, subject to any condition.

On hearing the learned counsel for both the sides and on consideration of the averments made in the bail application along with the documents annexed therewith, including the police forwarding report, this Court finds that the present accused has been in jail custody since 23.10.2019 that is, for 92 days .

Accordingly, it is provided that the accused petitioner, namely, **Md. Kutub Ali** shall be released on bail of **Rs.30,000/-** with one suitable surety of the like amount to the satisfaction of the learned **Special Judge (POCSO Act), Kamrup (M) at Guwahati**, subject, of course, to the following conditions:

1. That the accused shall co-operate in the investigation as and when required;
2. That the accused shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts either to the Court or to any police officer; and
3. That the accused shall not hamper or tamper with the investigation in any manner.

With the above directions, the bail application stands disposed of.

Return the case diary.

JUDGE

Comparing Assistant